

HOUSE No. 708

The Commonwealth of Massachusetts

PRESENTED BY:

Priscila S. Sousa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring a mental health wellness examination for all school children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>1/13/2025</i>

HOUSE No. 708

By Representative Sousa of Framingham, a petition (accompanied by bill, House, No. 708) of Priscila S. Sousa relative to requiring a mental health wellness examination for all school children. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 585 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring a mental health wellness examination for all school children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1

2 MGL chapter 71 is hereby amended by adding a new section thereto as follows:

3 Section 57B

4 Section 57B. The committee, or the board of health in those municipalities where school
5 health services are the responsibility of the board of health, shall cause every child in the public
6 schools, and at the individual request of a parent or guardian of a pupil in a private school which
7 has been approved under section one of chapter seventy-six, and which does not discriminate in
8 its entrance requirements on the basis of race or color cause such pupil to be separately and
9 carefully examined in such manner and at such intervals, including original entry, as may be

determined by the department of public health after consultation with the department of education and the medical profession, to conduct a mental health wellness examination, as defined in section 32 of chapter 32A, and shall require a physical record of each child to be kept in such forms as prescribed by the provisions of section one hundred and eighty-five A of chapter one hundred and eleven.

Upon entering kindergarten or within 30 days of the start of the school year, the parent or guardian of each child shall present to school health personnel certification that the child within the previous 12 months has received a mental health wellness examination by a licensed professional. Any child shall be exempt on religious grounds from these examinations upon written request of parent or guardian on condition that the laws and regulations relating to communicable diseases shall not be violated.

Every private school that does not perform these examinations shall be required to inform each parent and guardian of every enrolled pupil that the school does not conduct these examinations and shall recommend that the parent consult with the child's health care provider or local school committee or board of health to ensure that these examinations are conducted.

Any person who conducts an examination of a child in response to such child having concerns about said examination given in accordance with the provisions of this section shall forward a written report of the results of the examination to the school health personnel and a copy of said report to a parent or guardian of such child. Said report shall include, but not be limited to, the following:

(a) date of the report;

(b) name and address of the child;

(c) name of the child's school;

(d) type of examination;

(e) a summary of significant findings, including diagnoses, medication used, duration of action of medication, treatment, prognosis, whether or not a return visit is recommended and, if so, when;

(f) recommended educational adjustments for the child, if any;

(g) name, address and signature of the examiner.

SECTION 2

Section 2GGGGG of chapter 29 is hereby amended by adding at the end of the first paragraph before the period the following subclause: “; and (v) provide grants for mental health wellness examination in underserved school districts.”